

Court No. - 39

Case :- WRIT - C No. - 9258 of 2017

Petitioner :- M/S Parmarth Steel & Alloys Pvt. Ltd. Thru' Its Director

Respondent :- State Of U.P. & 4 Others

Counsel for Petitioner :- Prateek Kumar, Pramod Jain

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Dilip Gupta, J.

Hon'ble Siddhartha Varma, J.

The petitioners had earlier filed Writ Petition No.1322 of 2013 feeling aggrieved by the increase in the electricity duty. This petition was dismissed by judgment and order dated 16 January 2014. The petitioners filed Special Leave Petition in the Supreme Court in which initially an interim order was passed on 5 July 2014 but it was ultimately vacated on 9 October 2015. The respondents have issued a demand notice requiring the petitioners to pay the electricity duty as the writ petition was ultimately dismissed. It is this demand notice that is sought to be challenged in this petition.

It is stated by Sri Pramod Kumar Jain, learned counsel for the petitioners that the Electricity Lokpal by order dated 6 March 2013 had directed that an amount of Rs.10,41,967/- should be adjusted in the future bills issued by the Department and, therefore, it should be deducted from the demand notice that has now been issued to the petitioners.

It is, however, seen that the petitioners had filed Writ Petition No.30106 of 2013 to assail the said order which petition is said to be pending disposal. There is also no averment in the writ petition that the amount has not been adjusted in the future bills. In any case, as the demand notice has been issued as a result of the dismissal of the writ petition and the interim order has also been vacated by the Supreme Court, we see no good reason to

entertain this petition.

In the end, learned counsel for the petitioners has submitted that installments may be fixed by the Court as the petitioners are facing financial hardship. This is an issue which can be raised by the petitioners by invoking clause 6.14 of the Electricity Supply Code, 2005.

The writ petition is, accordingly, dismissed with the aforesaid observations.

Order Date :- 1.3.2017

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(Dilip Gupta, J.)

(Siddhartha Varma, J.)